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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S BENCH BRIEF IN
SUPPORT OF EX PARTE
APPLICATION TO STAY MOTION TO
STRIKE AND IN AID OF COURT'S
EARLY STUDY OF JUDGE'S
COURTESY BINDER**

(Code Civ. Proc., §§ 473(a)(1), 576; 425.16(f), (g); 1005(b);
Cal. Rules of Court, rules 3.1202(c), 3.1203(a), 3.1113,
3.1312; LRSF 2.7(B), 9.0(A))

Ex Parte Hearing:

Date: April 24, 2026

Time: 11:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

I. Introduction and Request to the Court

Plaintiff respectfully submits this short bench brief as a courtesy roadmap to the judge’s chambers binder and as a focused orientation to the narrow relief Plaintiff will ask the Court to enter on the ex parte calendar on April 24, 2026. The brief is not, and is not intended to be, an additional merits submission on the May 6, 2026 Motion for Leave to File Second Amended Complaint (the “MFL-SAC”). It is a five-page map of a twelve-tab binder and a concise statement of why a two-week stay of the defense’s April 22, 2026 Motion to Strike (the “MTS,” set May 22, 2026) is the minimum-intrusion order that preserves every party’s rights and conserves the Court’s law-and-motion calendar.

The ex parte request is narrow: stay the May 22 MTS hearing until the Court has ruled on the May 6 MFL-SAC. If leave to amend is denied, the MTS proceeds on its merits on a reset calendar. If leave to amend is granted, Defendants retain the full remedy the Legislature created for exactly this posture — a renewed special motion within 60 days of the operative (amended) pleading under Code of Civil Procedure section 425.16, subdivision (f).

II. Roadmap of the Judge’s Courtesy Binder (Dept. 301 — 12 Tabs)

The chambers binder delivered to Dept. 301 on the morning of April 24, 2026 is a single three-ring volume with a TOC cover sheet and twelve numbered tab dividers. The binder is organized so that every document the Court needs to act on the ex parte application is in the first half, and the full merits record for the May 6 MFL-SAC hearing follows.

Tab	Document	Purpose for the Bench
1	Oral-Argument Outline (ex parte)	3-minute script + authorities table for today’s argument
2	Notice of Filing — Decl. & [Proposed] Order (Motion to Deem, May 15)	Housekeeping: confirms the supporting papers for a separate 5/15 discovery hearing are on file

Tab	Document	Purpose for the Bench
3	Consolidated POS-050 — April 22, 2026 Service (801)	Proves Apr. 22 evening electronic service on all defense counsel of record (exceeds CRC 3.1203(a) 24-hour floor)
4	[Proposed] Order Staying MTS (801)	The single signable order implementing the ex parte relief — this is the Court’s minimum-intrusion path
5	Notice of Ruling Template (801)	Pre-drafted CRC 3.1312 notice for prompt service if the Court signs Tab 4
6	Reply ISO MFL-SAC — May 6, 2026 (801)	Full merits reply on the liberal-amendment showing (for the Court’s early study ahead of May 6)
7	Plaintiff’s Evidentiary Objections to O’Connell Decl. (801)	CRC 3.1354 objections to the sole defense declaration opposing amendment
8	Clerk Patch — 801 Reply Pages	Corrected pagination/table-of-authorities patch for Tab 6 (no substantive change)
9	Judge-Binder Patch Cover — Dept. 301	Explains the Tab 8 patch in one page

Tab	Document	Purpose for the Bench
10	POS-050 Apr. 24 Filing-Service (801)	Proof of today’s morning filing-service
11	POS-050 Apr. 24 Reply-Service (801)	Proof of today’s reply-companion service
12	POS-050 Apr. 29 Reply-Service (801, pre-exec)	Advance POS covering the late-week Reply re-service

The Court’s attention at the ex parte hearing is respectfully directed to **Tabs 1, 3, 4, and 5** — the oral-argument outline, proof of service, the proposed order, and the companion notice-of-ruling template. The balance of the binder is provided as early courtesy lodging for the Court’s May 6, 2026 hearing.

III. Procedural Posture

- **December 23, 2025** — Complaint filed; Plaintiff granted IFP fee waiver the same day (Gov. Code § 68634(e)).
- **February 25, 2026** — First Amended Complaint (“FAC”) filed.
- **Early April 2026** — Plaintiff noticed Motion for Leave to File Second Amended Complaint for **May 6, 2026**, Dept. 301.
- **April 22, 2026 (Wed.)** — Defendants filed Motion to Strike the FAC, set **May 22, 2026**, Dept. 301.
- **April 22, 2026 (Wed. evening)** — Plaintiff served and lodged the present ex parte application (CRC 3.1202, 3.1203, 3.1204).
- **April 24, 2026 (Fri.)** — Ex parte hearing at 11:00 a.m.

IV. Why the Court Should Hear This Ex Parte — Shortened-Time Analysis

CRC 3.1202(c) requires an “affirmative factual showing” of irreparable injury, immediate danger, or a “statutory basis for granting the relief ex parte.” Plaintiff’s showing rests on all three doors, but chiefly on the third: sections 473(a)(1) and 576 vest the Court with discretion to manage its

own calendar “at any stage of an action” and “in furtherance of justice.” Allowing the May 22 MTS to proceed on notice against a pleading that Plaintiff has already moved to supersede would force a duplicative law-and-motion calendar event on a pleading that may “cease to perform any function as a pleading” on May 6. Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884. That is the textbook irreparable-injury/judicial-economy showing CRC 3.1202(c) contemplates. CRC 3.1203(a)’s 24-hour notice floor is more than satisfied: ex parte papers were served the evening of April 22 for an April 24 morning hearing (approximately 36 hours’ notice).

V. The California Supreme Court Rule: Leave to Amend Must Be “Liberally Permitted”

The California Supreme Court has treated leave to amend as an instrument of substantial justice for more than eighty years. Four authorities crystallize the rule:

1. **Klopstock v. Superior Court** (1941) 17 Cal.2d 13, 19–20 — “[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings.” Leave should be granted liberally where the proposed amendment rests on the same “general set of facts.” Id. at pp. 19–20.
2. **Mesler v. Bragg Management Co.** (1985) 39 Cal.3d 290, 296–297 — The policy “is one of great liberality at any stage of the proceeding”; “amendments will be allowed with great liberality to do justice and no abuse of discretion is shown” absent prejudice traceable to the delay itself.
3. **Kittredge Sports Co. v. Superior Court** (1989) 213 Cal.App.3d 1045, 1047 — Denial of leave to amend is an abuse of discretion where the amendment is timely, the grounds are sufficient, and no real prejudice results.
4. **Morgan v. Superior Court** (1959) 172 Cal.App.2d 527, 530 — “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend.”

Plaintiff’s proposed SAC (i) arises from the same general set of facts as the FAC (the same insurance-bad-faith and related claims framework pleaded in December 2025), (ii) is timely (moved more than two months before any trial setting), and (iii) threatens no prejudice that runs from the delay in amendment — only the ordinary operational consequence that Foreman & Clark attaches

1 to any amended pleading.

2 **VI. Supersession and Mootness**

3 Once the Court grants leave to file the SAC, the FAC “ceases to perform any function as a pleading.”
4 Foreman & Clark, supra, 3 Cal.3d at p. 884. The May 22 MTS is directed at the FAC. On May
5 6, that target either survives (in which case the MTS is heard on the merits on a reset date) or
6 disappears by operation of law (in which case the MTS is moot). Staying the MTS for two weeks
7 converts a coin-flip into a deterministic calendar. It does not enlarge or shrink any substantive
8 right.

9 **VII. Defense’s Rights Are Fully Preserved — Section 425.16(f), (g)**

10 **Subdivision (f).** The Legislature expressly contemplated post-motion amendment. Section 425.16(f)
11 permits a defendant to file a renewed special motion to strike **within 60 days** of the amended plead-
12 ing, “or, in the court’s discretion, at any later time upon terms it deems proper.” A stay pending
13 SAC-leave does not deprive Defendants of anything; it channels them into the exact statutory rem-
14 edy the Legislature created for this posture.

15 **Subdivision (g).** The § 425.16(g) discovery stay reaches only discovery “relating to the motion.”
16 It is a narrow gatekeeping rule; nothing in (g) speaks to pleading-amendment motions under §§
17 473(a)(1) and 576. The ex parte stay requested does not touch the (g) discovery stay — it concerns
18 only the May 22 MTS calendar.

19 **VIII. Judicial Expediency and Court Resources**

20 The two-week stay saves one full law-and-motion calendar slot in Dept. 301 on May 22. It also
21 avoids duplicative briefing — reply and opposition papers on a MTS that the May 6 ruling may
22 render moot — and removes the risk of inconsistent rulings across the two hearings. Where the
23 same Court, on the same bench, will decide the antecedent pleading question two weeks earlier,
24 ordering the dependent hearing to stand down is the paradigmatic exercise of the §§ 473(a)(1)/576
25 calendar-management discretion that CRC 3.1202(c) endorses on an ex parte showing of judicial
26 economy.

1 **IX. Minimum-Intrusion Proposed Disposition**

2 The signable order is at **Tab 4** of the chambers binder: “[Proposed] Order Staying Motion to Strike
3 Pending Ruling on Motion for Leave to File Second Amended Complaint.” It does three things
4 and nothing more:

- 5 1. Stays the May 22, 2026 MTS hearing in Dept. 301, to be re-set (if at all) within 30 days after
6 the Court’s ruling on the May 6, 2026 MFL-SAC;
7 2. Preserves Defendants’ § 425.16(f) 60-day renewed-motion remedy as-if the MTS had been
8 denied without prejudice on procedural grounds;
9 3. Confirms that the § 425.16(g) discovery stay is not affected by this order.

10 If the Court prefers to narrow or broaden any of those three operative paragraphs, Plaintiff stands
11 ready to make interlineations on the bench.

12 **X. Conclusion**

13 Plaintiff respectfully asks the Court to sign the [Proposed] Order at Tab 4 staying the May 22,
14 2026 MTS pending the Court’s ruling on the May 6, 2026 MFL-SAC. The order is narrow, it is
15 supported by a California Supreme Court line of authority that has commanded liberal amendment
16 since 1941, and it is the path that conserves this Court’s calendar without prejudicing any party.

Dated: April 24, 2026



/s/ *Franciscus Dylan Rosario*

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